



E Roz <evanroz@gmail.com>

RE: rent increase July 1 20241 message

+WPG725 - CCA RTB <rtb@gov.mb.ca>Mon, Jun 10, 2024 at 2:56
PM

To: Evan Rosner <evanroz@gmail.com>

Hello,

You should pay what they are asking for on July 1 2024 until a decision has been made by the RTC.

If you do not pay the full amount the landlord may give you an eviction notice for non-payment of rent.

If the RTC agrees with the Branch and upholds the order, you would be in a situation where you would potentially be habitually late and owing rent which are things the landlord can evict you for. If the RTC decreases the awarded amount, the landlord would then owe you a credit for any overpayment.

Thanks.

Rtb/lg

From: Evan Rosner <evanroz@gmail.com>
Sent: Friday, June 7, 2024 12:42 PM
To: +WPG725 - CCA RTB <rtb@gov.mb.ca>
Subject: Re: rent increase July 1 2024

Thank you for the response but I need an answer: What should my rent payment be on the 1st of July, 2024?

On Fri, Jun 7, 2024 at 11:09 AM +WPG725 - CCA RTB
<rtb@gov.mb.ca> wrote:

Good day,

On the notice you attached, it appears the landlord has indicated they are applying for an above guideline rent increase. Once we receive their application, an officer is assigned, and you will receive a letter giving you the opportunity to object. Once all the information to apply for a rent increase has been provided to the branch, the rent increase will be investigated and may or may not be approved for the requested amount, or may not be approved at all.

Best,

KB

Client Services Officer

T 204-945-2476 F 204 945-6273

www.manitoba.ca/rtb



Residential Tenancies Branch

Department of Consumer Protection and Government Services

1700 – 155 Carlton Street Winnipeg MB R3C 3H8

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From: Evan Rosner <evanroz@gmail.com>

Sent: Wednesday, June 5, 2024 1:41 PM

To: +WPG725 - CCA RTB <rtb@gov.mb.ca>

Subject: re: rent increase July 1 2024

Greetings,

I have received several NOI from the landlord Thorwin Properties and I am not sure what I should be paying on July 1, 2024.

Please see the attached.

Note, I am appealing the Rent Increase through the RTC. Does this mean that I should not change the payment from what it is currently?

Form 4

Renewal of Tenancy Agreement

Note to Tenant:

You may continue to occupy your rental unit. If you want to renew your tenancy agreement, you must sign this form and return it to the landlord by: July 31, 2023.

If the landlord has applied for, or plans to apply for, a rent increase above the guideline, you may sign this agreement and still have the right to end your tenancy with notice of two rental payment periods. Your right to give notice is in effect from the date you receive notice that the landlord is applying for a rent increase above the guideline until 14 days after you receive a decision from the Residential Tenancies Branch or Residential Tenancies Commission.

This Renewal Agreement is made in duplicate between:

Thorwin Properties, 1274 Archibald Street, Winnipeg, MB R2J 0Z3; (204) 222 - 2422, the Landlord
Legal name, address and telephone number of landlord

and

Evan Rosner, the Tenant.
Name of tenant

The landlord and tenant agree to renew the Tenancy Agreement respecting the rental unit located at:

10 - 585 Corydon Avenue, Winnipeg, MB R3L 0P3
Address

for a fixed term beginning on October 1, 2023 and ending on September 30, 2024
Date Date

at the following rent:

	Effective October 1, 2023	Effective July 1, 2024
Basic Rent:	\$1218.00	\$1340.00
For <u>0</u> parking stalls:	\$0.00	\$0.00
Other (specify):	\$1218.00	\$1340.00
Rent Payable:	\$193.00	\$140.00
Less Rent Discount:		
Actual Amount Tenant Must Pay:	\$1025.00	\$1200.00

(Complete this section if a rent increase on the rental unit is due before the date this agreement ends.)

_____ The landlord plans to increase the rent by the annual rent increase guideline on _____. The landlord must provide the tenant with a Notice of Rent Increase at least 3 months before the rent is increased.

☒ _____ The landlord plans to apply for a rent increase above the guideline to increase the rent on July 1, 2024. The proposed Rent Payable will be \$1340.00. The landlord must provide the tenant with a Notice of Rent Increase at least 3 months before the rent is increased.

(Complete this section if there is a rent discount.)

***Rent Discount:**

A landlord is not required to offer a rent discount, but if a discount is given, it must be set out in writing. Reducing or removing a rent discount is not considered a rent increase under *The Residential Tenancies Act*. However, an unconditional discount cannot be reduced or removed unless the tenant receives written notice of at least 3 months. If a tenancy agreement or discount agreement is for a fixed term, a landlord cannot reduce or remove an unconditional discount during the term of the agreement. If a discount is subject to a condition, e.g. paying the rent on time, the landlord can withdraw it without notice if the tenant does not meet the condition.

The landlord is offering a rent discount of \$140.00 subject to the following conditions:

Rent is paid in full and on time every month.

(Provide details of any conditions – add additional pages if necessary)

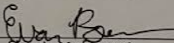
_____ Discount is the same as last year's or increased by \$

_____ Discount is reduced by \$

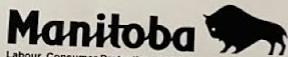
_____ Discount is removed.

☒ _____ The proposed Rent Payable is subject to an application to the Residential Tenancies Branch for an above-guideline rent increase. The discount may be reduced or removed depending on the final decision on the landlord's application in any event, the Actual Amount Tenant Must Pay will not exceed **\$1200.00**

Signatures

_____	Thorwin Properties	_____
Date	Print name of landlord	Signature of landlord
<u>July 2, 2023</u>	Evan Rosner	
Date	Print name of tenant	Signature of tenant
_____	_____	_____
Date	Print name of tenant	Signature of tenant
_____	_____	_____
Date	Print name of tenant	Signature of tenant
_____	_____	_____
Date	Print name of guarantor	Signature of guarantor

Note: If the unit is registered as a condominium, the unit may be sold. If it is sold and the purchaser wants to move in, the tenant may be given notice to move, subject to this agreement and any rights the tenant may have under *The Condominium Act*.



Labour, Consumer Protection and Government Services
Residential Tenancies Branch
1700 - 155 Carlton Street, Winnipeg, Manitoba, Canada R3C 3H8
T: 204-945-2476 F: 204-945-6273 www.manitoba.ca/rtb

December 08, 2023

D. Blank
8 - 585 Corydon Avenue
Winnipeg MB R3L 0P3

DML

Sir/Madam:

Landlord Application for Above Guideline Rent Increase
Complex: The Pines

Landlord has applied to the Branch to increase your rent on November 1, 2024 by more than the annual rent increase guideline.

From:		To a Maximum of:	
Base Rent:	\$1,552.00	Base Rent:	\$1,880.00
Total:	\$1,552.00	Maximum Rent:	\$1,880.00

When a landlord applies for an above guideline rent increase, they must give the Branch information about:

- operating expenses (expenses that recur on a regular basis)
- capital expenditures (improvements that have a lasting, long-term benefit)
- changes in services or facilities
- the annual economic adjustment factor (a percentage set by the government each year to account for the effect of inflation on landlords' revenue)

For your information, we have enclosed a copy of the Landlord's Summary Information - Application for Above Guideline Increase that your landlord submitted with the application. The Branch will review the application to ensure it complies with The Residential Tenancies Act and the regulations.

You have the right to inspect the complete application and the supporting documents. If you want to do so, contact David Maclean at 204-945-2484. Once you have booked an appointment, come to:

Winnipeg - Residential Tenancies Branch
1700 - 155 Carlton Street, Winnipeg MB R3C 3H8

Monday to Friday
8:30 a.m. to 4:30 p.m.
December 11, 2023 to December 28, 2023

If you are unable to view your landlord's application during the above viewing period or during the Branch's normal work hours, please contact the Branch at the number shown above to make other arrangements which could include a time in the evening during the week of December 11, 2023. If you come to the Branch to see the information, please bring some identification to show that you live at this address.

Please bring your written comments you want an officer to consider before making a decision. If you have any questions, please contact the Branch by Thursday, December 28, 2023.

Enclosed is an information sheet on rent increases.

Residential Tenancies Branch

Note: The branch will not provide copies of any part of the application including the financial information contained in the file.

ORDER NO: W2024-001539

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN

Thorwin Properties
1274 Archibald Street
Winnipeg MB R2J 0Z3

LANDLORD

AND

E. Rosner
10 - 585 Corydon Avenue
Winnipeg MB R3L 0P3

TENANT

ADDRESS OF RENTAL UNIT: 10 - 585 Corydon Avenue, Winnipeg MB R3L 0P3

ORDER

The landlord applied for an order fixing the value of a reduction or withdrawal of service under Section 138 of The Residential Tenancies Act.

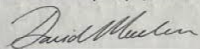
After considering the information received, it is ordered that the value for the withdrawal of Storage Facilities / Laundry is fixed at \$128.00 per month. The tenant's rent will be reduced by \$128.00 per month beginning February 1, 2024.

* Please note that this will not affect your usual rent increase date.

THE RESIDENTIAL TENANCIES BRANCH

1700 - 155 Carlton Street
Winnipeg, Manitoba R3C 3H8
Telephone: 204-945-2484
e-mail: david.macleaun@gov.mb.ca
Toll-Free: 1-800-782-8403

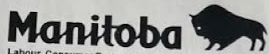
DATED THIS 2nd day of April, 2024

D. Macleane
Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than Monday, April 22, 2024. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

File Number: SWL-2024-000070

Manitoba 



Labour, Consumer Protection and Government Services
Residential Tenancies Branch
1700 - 155 Carlton Street, Winnipeg, Manitoba, Canada R3C 3H8
T: 204-945-2476 F: 204-945-6273 www.manitoba.ca/tb

February 14, 2024

E. Rosner
10 - 585 Corydon Avenue
Winnipeg MB R3L 0P3

OML

Dear Sir/Madam:

Re: Landlord Application for Service Withdrawal
Residential Complex: The Pines

Your landlord has applied to the Branch for an order setting the value of the withdrawal of Storage Facilities / Laundry on May 1, 2024. To compensate for this withdrawal, your landlord proposed to lower your rent by \$0.00. If the Branch approves the landlord's application, your rent would be reduced by that amount.

The Branch has received information from your landlord. You have the right to inspect the complete application and the supporting documents. If you want to do so, contact David Maclean at 204-945-2484. Once you have booked an appointment, come to:

Winnipeg - Residential Tenancies Branch
1700 - 155 Carlton Street, Winnipeg MB R3C 3H8

Monday to Friday
8:30 a.m. to 4:30 p.m.
February 15, 2024 to March 4, 2024

If you are unable to view your landlord's application during the above viewing period or during the Branch's normal work hours, please contact the Branch at the number shown above to make other arrangements which could include a time in the evening during the week or on a Saturday. If you come to the Branch to see the information, please bring some identification to show that you live at this address.

You may also give the Branch comments you want an officer to consider before making a decision. If you have comments, send them to the Branch by Monday, March 4, 2024.

Residential Tenancies Branch

File No.: SWL-2024-000070



Residential Tenancies Commission
1650-155 Carlton Street, Winnipeg, Manitoba, Canada R3C 3H8
T 204-945-2028 Toll-Free 1-800-782-8403
F 204-945-5453 Email: rtc@gov.mb.ca

February 23, 2024

Evan Rosner
10-585 Corydon Avenue
Winnipeg, MB R3L 0P3

Dear Evan Rosner:

Via Regular Mail

RE: Rent Increase Appeal: 585 Corydon Avenue, Winnipeg, MB R3J 3J3

The Residential Tenancies Commission acknowledges receipt of your appeal of the Order of the Residential Tenancies Branch dated February 20, 2024, which was received at our office on February 23, 2024.

The Commission will be scheduling a hearing to consider this matter as soon as possible, and you will receive written notice of the hearing date and time from our office, as soon as it is set.

Should you have any questions regarding the process or the parameters of the appeal, please call or email the Commission as indicated above.

Yours truly,

MICHELLE POLLOCK-KOHN
Deputy Chief Commissioner
Residential Tenancies Commission
/na